

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 09/09/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Felix de Flores - Trust; 30-2025-01514581	Motions to Quash (3) Specially Appearing Respondent Jose Antonio Palacio's Motion to Quash Service of Verified Petition for Lack of Personal Jurisdiction (ROA 71) is GRANTED. Specially Appearing Respondent Luz Maria Palacio's Motion to Quash Service of Petition for Lack of Personal Jurisdiction (ROA 86) is GRANTED. Pursuant to CCP §§ 418.10 and 581(h), specially appearing respondents Jose Antonio Palacio and Luz Maria Palacio (Respondents) move to quash service of the petition on the ground they were not personally served with the petition. "Probate proceedings are proceedings in rem. A superior court has jurisdiction to determine the interests of all parties connected with the property of a decedent based on the property's location within the state." (<i>Capra v. Capra</i> (2021) 58 Cal.App.5th 1072, 1082-1083; <i>see also Estate of Kampen</i> (2011) 201 Cal.App.4th 971, 1003 ["The jurisdiction of the probate court is in rem and the res is the decedent's estate."].) Because it is an in rem proceeding, a probate matter finally resolves all conflicting rights and binds the "whole world". As the California Supreme Court explained in <i>In re Radovich's Estate</i> (1957) 48 Cal.2d 116, 121: "the jurisdiction of the probate court is a jurisdiction in rem; [] an heirship proceeding is not an ordinary civil action, but a specialized proceeding in rem. The res is the right of heirship and distribution

		and as to that issue the decree is binding on the whole world." (See also <i>Bodine v. Superior Court</i> (1962) 209 Cal.App.2d 354, 359-360 ["Such a proceeding is not an ordinary civil action, but a specialized proceeding in rem." (Id at p. 383.) "So it has been said that such heirship decree [is] conclusive against all persons as the basis for the decree of distribution which [is] to follow; it settles the rights of all persons claiming as heirs of the decedent, whether or not they are named in the complaint or personally served with summons and whether or not they were individually named in [the] notice. . . . The decree is not one in personam in favor of one of the parties against another." Citations and internal quotation marks omitted.].) Under the foregoing authorities, mail service of the petition on Respondents was sufficient to support this court's exercise of jurisdiction over claims asserted in the petition (ROA 2) seeking to contest a trust, remove a trustee, impose a surcharge in connection with the trustee's breach of fiduciary duties, compel an accounting, determine the rights of heirs and beneficiaries, and the invalidity of a no-contest clause. Mail service is not, however, sufficient to support this court's exercise of jurisdiction over the remaining claims asserted in the petition, i.e. financial elder abuse, Probate Code section 850, and fraud. Nor is mail service sufficient to support an award of damages, double damages, and punitive damages against the individual respondents. (Prob. Code, § 581; Code of Civ. Proc., § 413.10 et seq.) Because those claims are alleged in this petition, mail service of the petition is not sufficient. The motions are GRANTED. Respondent Luz Maria Palacio is ordered to give notice.
2	Rayhan – Other Probate; 30-2023-01348724	<u>Proceedings stayed 08/19/2026.</u>
3	Richley – Trust; 30-2025-01493436	CONTINUED TO 09/16/2026 AT 09:00 AM.